

BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

Re:	)	CASE Nos. 14-044 & 14-0104
Mental Health Counselor License of	)	
	)	
MICHAEL PIERCE	)	NOTICE OF HEARING AND
License No. 001194	)	STATEMENT OF CHARGES
Respondent.	)	

COMES NOW the Iowa Board of Behavioral Science ("Board") and files this Notice of Hearing and Statement of Charges against Michael Pierce ("Respondent"), 610 N 4th Street, Burlington, Iowa 52601, pursuant to Iowa Code sections 17A.12(2) and 17A.18(3) (2015). Respondent's license number 001194 is currently active and expires on September 30, 2016.

A. TIME, PLACE, AND NATURE OF HEARING

Hearing. A disciplinary contested case hearing shall be held on May 7, 2015, before the Board. The hearing shall begin at 10:00 a.m. and shall be located in the Lucas State Office Building, 5th Floor Board Room #526, Des Moines, Iowa.

Answer. Within twenty (20) days of the date you are served this Notice of Hearing and Statement of Charges, you are required by 645 IAC 11.12 to file an Answer. The Answer should specifically admit, deny, or otherwise answer all allegations contained in sections C and D of this Notice of Hearing and Statement of Charges. Pleadings shall be filed with the Board at the following address: Iowa Board of Behavioral Science, Lucas State Office Building, 5th Floor, 321 E. 12th St., Des Moines, Iowa 50319.

Presiding Officer. The Board shall serve as presiding officer, but the Board may request an Administrative Law Judge from the Department of Inspections and Appeals make initial rulings on pre-hearing matters, and be present to assist and advise the Board at the hearing.

Hearing Procedures. The procedural rules governing the conduct of the hearing are found at 645 IAC 11. At the hearing, you may appear personally or be represented by counsel at your own expense. You will be allowed the opportunity to respond to the charges against you, to produce evidence on your behalf on issues of material fact, cross-examine witnesses present at the hearing, and examine and respond to any documents introduced at the hearing. If you need to request an alternative time or date for the hearing, you must comply with the requirements in 645 IAC 11.18. The hearing may be open to the public or closed to the public at your discretion.

Pre-hearing Conference. Any party may request a pre-hearing conference to discuss evidentiary issues related to the hearing. The Board's rules regarding pre-hearing conferences are found at 645 IAC 11.17.

Prosecution. The Office of Attorney General is responsible for representing the public interest (the State) in this proceeding. Copies of pleadings should be provided to counsel for the State at the following address:

Laura Steffensmeier
Assistant Attorney General
Iowa Attorney General's Office
2nd Floor, Hoover State Office Building
Des Moines, Iowa 50319

Ms. Steffensmeier can also be reached by phone at (515) 281-6690 or by e-mail at laura.steffensmeier@iowa.gov.

Communications. You may contact the Board office at (515) 281-4422 with questions regarding this notice and other matters relating to these disciplinary proceedings. You may not contact individual Board members in any manner, including by phone, letter, or e-mail, regarding this Notice of Hearing and Statement of Charges. Board members may only receive information about the case when all parties have notice and the opportunity to participate, such as at the hearing or in pleadings you file with the Board office and serve upon all parties in the case.

B. LEGAL AUTHORITY AND JURISDICTION

Jurisdiction. The Board has jurisdiction in this matter pursuant to Iowa Code chapters 17A, 147, 154D, and 272C (2015).

Legal Authority. If any of the allegations against you are founded, the Board has authority to take disciplinary action against you under Iowa Code chapters 17A, 147, 154D, and 272C and under 645 IAC 13 and 33.

Default. If you fail to appear at the hearing, the Board may enter a default decision or proceed with the hearing and render a decision in your absence, in accordance with Iowa Code section 17A.12(3) and 645 IAC 11.21.

C. CHARGES

Count I

Respondent is charged with violation of a law of this state related to the practice of the profession, specifically Iowa Code section 232.69, pursuant to Iowa Code section 147.55(9) and 645 IAC 33.2(13).

Count II

Respondent is charged with failing to comply with the current Code of Ethics of the American Counseling Association, specifically sections B.1.d (Explanation of Limitations) and B.5.c (Release of Confidential Information), pursuant to Iowa Code sections 147.55(9) and 645 IAC 33.2(1)"b".

Count III

Respondent is charged with engaging in practice harmful or detrimental to the public, pursuant to Iowa Code sections 147.55(3) and 645 IAC 33.2(4).

D. FACTUAL CIRCUMSTANCES

1. On at least one occasion, Respondent failed to report child abuse according to the reporting procedures described in Iowa Code section 232.69. The failure to report may have led to prolonged abuse.

2. On one occasion, Respondent encouraged a minor client who reported abuse to apologize to the perpetrator for making the abuse accusations. The minor client suffered harm from Respondent's reaction to the reported abuse.

3. On one occasion, Respondent assured a minor client of confidentiality for their sessions, but then released confidential information shared during sessions to the minor client's guardians. The minor client suffered harm due to the breach of trust.

E. SETTLEMENT

This matter may be resolved by settlement agreement. The procedural rules governing the Board's settlement process are found at 645 IAC 12.1. If you are interested in pursuing settlement in this matter, please contact Assistant Attorney General Laura Steffensmeier at (515) 281-6690.

F. FINDING OF PROBABLE CAUSE

On this 5th day of February, 2015, the Iowa Board of Behavioral Science found probable cause to file this Notice of Hearing and Statement of Charges.

Erin Oostenink, MA, LMHC

ERIK OOSTENINK, Chairperson
Iowa Board of Behavioral Science

cc: Laura Steffensmeier
Assistant Attorney General
Hoover Building, 2nd Floor
Des Moines, IA 50319
ATTORNEY FOR THE STATE